

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 24-003
Amendments to Title 3, Chapter 2 of the Chickasaw Nation Code
(Beverage Control Act)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Legislature has previously adopted statutes regulating and controlling the sale of alcoholic beverages in Indian Country, and

WHEREAS, In accordance with U.S. Code Title 18 §1161, all tribal statutes regulating and controlling the sale of alcoholic beverages in Indian Country must comply with current state statutes regulating and controlling the sale of alcoholic beverages (the "State Alcoholic Beverage Laws"), and

WHEREAS, the state legislature has made numerous changes to the State Alcoholic Beverage Laws, and

WHEREAS, it is to the benefit of the Chickasaw Nation to amend the existing tribal statutes to meet the Chickasaw Nation's current needs and all federal requirements.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to relevant sections of Title 3, Chapter 2 of the Chickasaw Nation Code, all other sections to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 3-201.2 **FINDINGS.**

The Legislature finds that:

1. it is necessary to adopt strict controls over the operation of certain beverage sales conducted in Indian Country which is under the jurisdiction of the Chickasaw Nation;
2. it is necessary to establish legal authority for the Chickasaw Nation, its agents, servants and employees to engage in Alcoholic Beverage sales **on tribal lands** within the legal boundaries of the Chickasaw Nation ~~on lands that are in "trust" status with the United States;~~ provided that such locations are ~~also located within "wet" counties as defined by Oklahoma statutes.~~ **in compliance with the laws of the State of Oklahoma.**

SECTION 3-201.3 **DEFINITIONS.**

11. "Public Place" means federal, state, county or tribal highways and roads; buildings and grounds used for school purposes; public dance halls and grounds adjacent thereto;

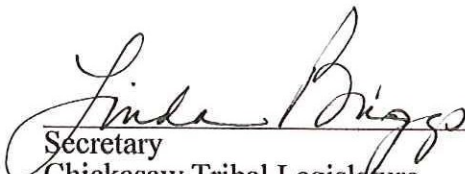
soft drink establishments, public buildings, public meeting halls, lobbies, halls and dining rooms of hotels, restaurants, theaters, gaming facilities, entertainment centers, stores, garages and filling stations which are open to and/or generally used by the public and to which the public is ~~permitted generally unrestricted access;~~ **has right to access;** public conveyances of all kinds and character; and all other places of like or similar nature to which the general public has ~~unrestricted right of to~~ access, and which are generally used by the public;

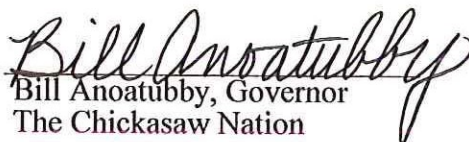
SECTION 3-201.7**LICENSING AND APPLICATION.**

H. Within 15 days after a licensee is mailed written notice of a proposed suspension or revocation of the license, of the imposition of fines or of other adverse action proposed by the Chickasaw Nation Tax Commission under this Act, the licensee may deliver to the Chickasaw Nation Tax Commission a written request for a hearing on whether the proposed action should be taken. A hearing on the issues shall be held before a person or persons appointed by the Chickasaw Nation Tax Commission and a written decision will be issued. Such decisions will be considered final unless an appeal is filed **in accordance with Title 5, Chapter 2, Article G of the Chickasaw Nation Code.** ~~with the Tribal Court within fifteen (15) calendar days of the date of mailing the decision to the licensee. The Tribal Court will then conduct a hearing and will issue an order, which is final with no further right of appeal.~~ All proceedings conducted under all sections of this Act shall be in accord with due process of law."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 15, 2006, by a vote of 9 ayes, 1 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 15 2006

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number PR24-003
Amendments to Title 3, Chapter 2 of the Chickasaw Nation Code
(Beverage Control Act)

Explanation: This resolution amends relevant sections of Title 3, Chapter 2 of the Chickasaw Nation Code codified therein as the "Beverage Control Act of 2007." The amended Beverage Control Act will meet all the current needs of the Chickasaw Nation and will satisfy all federal requirements.

Requested By: Bill Anoatubby, Governor

Presented By: Steve Woods, Committee Chair
Legislative Committee